

MALIK SHAHZAD AHMAD KHAN, J.- I have gone through the majority judgment and respectfully disagree with the reasoning given and conclusions drawn therein, whereby it is held that non-mentioning of “full protocols” as envisaged under un-amended rule 6 of the Control of Narcotic Substances (Government Analyst) Rules, 2001 (**Rules 2001**), does not, of itself, invalidate the report of the Government Analyst. It was further held that mere mentioning the respective names of the internationally recognized tests as described in clauses (i) to (vii) of Explanation II to amended rule 6 of the Rules 2001, in the report amounts to “full and sufficient compliance” of the rules.

2. It is constitutional right of every citizen of Pakistan under Articles 4 and 10-A of the Constitution of the Islamic Republic of Pakistan, 1973 (**The Constitution**), to be dealt with in accordance with law, to have fair trial and due process. Article 4 of the Constitution reads as under:-

- 4.** (1) To enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen, wherever he may be, and of every other person for the time being within Pakistan.
- (2) In particular—
- (a) no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law;
 - (b)
 - (c)

Article 10-A of the Constitution is also reproduced hereunder for ready reference:-

10-A. For the determination of his civil rights and obligations or in any criminal charge against him a person shall be entitled to a fair trial and due process.

It is, therefore, evident from the perusal of abovementioned Articles of the Constitution that no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with the law. Likewise, it is also provided in the abovementioned Articles of the Constitution that in any criminal charge against a person, he shall be entitled to a fair trial and due process. In the light of above, it is clear that under the Constitution, every citizen of Pakistan is entitled to be tried in accordance with the law, fair trial and due process.

3. The practice of planting fake recoveries of narcotics against innocent persons including the politicians belonging to opposition parties, as well as, persons having enmity with the police officials or influential persons, is common in our society, therefore, in order to rule out or at-least minimize the possibility of false involvement of any innocent person in the cases registered under the provisions of the Control of Narcotic Substances Act, 1997 (**Act, 1997**), the provisions of the Act *ibid* and rules made thereunder be construed strictly. This Court has time and again held in its various judgments that as very stringent punishments are provided for the offences under the Act of 1997, therefore, provisions of the said Act and rules made thereunder be construed strictly. It has also been repeatedly held by this Court that it is in the interest of justice that the relevant provisions of law dealing with the procedure, as well as, furnishing expert report etc are to be followed in their letter and spirit. In the case reported as "Muhammad Hashim v. The State" (**PLD 2004 Supreme Court 856**), it was held as under:-

.....It is to be noted that under Act, 1997, stringent sentences have been provided if offences charged against the accused within any component of section 9 is proved.

Therefore, for such reason, Act 1997 has to be construed strictly and the relevant provisions of law dealing with the procedure as well as furnishing the proof like the report of expert, etc, are to be followed strictly in the interest of justice.....

Similar view was taken by this Court in the judgment reported as “Muhammad Imran v. The State” (2011 SCMR 1954).

Both the abovementioned judgments have been passed by a Bench comprising of three Judges of this Court. In the case of “Ameer Zeb v. The State” (PLD 2012 Supreme Court 380), a Bench comprising of five Judges of this Court has again reiterated the abovementioned principle in the following terms:-

.....It is to be noted that under Act, 1997, stringent sentences have been provided if offences charged against the accused within any component of section 9 is proved. Therefore, for such reason, Act 1997 has to be construed strictly and **the relevant provision of law dealing with the procedure as well as furnishing the proof like the report of expert, etc, are to be followed strictly in the interest of justice**.....

(Bold and underlining are supplied for emphasis)

It is, therefore, by now well settled that as very stringent punishments are provided for the offences falling under the Act of 1997, therefore, it will be in the interest of justice that the provisions of the Act *ibid* and rules made thereunder are to be followed strictly. It has also been observed repeatedly by this Court that **“harsher the sentence, stricter the standard of proof”**. Therefore, in my humble view, it will be highly risky to hold that non-mentioning of full protocols does not, of itself, invalidate the report of the Government Analyst and only mentioning of the names

of internationally recognized tests in the report would amount to “full and sufficient compliance” of the Rules 2001.

4. The reason of constitution of the larger bench has already been given in paragraph No.1, of the majority judgment, therefore, there is no need to repeat the same. However, with all humility at my part, I have noted that in none of the judgments mentioned in the said paragraph with the description of **Second Category of Cases**, it has specifically been held that rule 6 of the Rules 2001, is directory and not mandatory. In the case of “Gul Alam v. The State” (2011 SCMR 624), mentioned in the second category of cases in paragraph No.1, of the majority judgment, rule 6 of the Rules 2001 and section 36 of the Act, 1997, are not discussed and only Rules 4 & 5 of the Rules 2001, were declared to be directory in nature, which rules have also been declared directory in nature in the cases mentioned in the said paragraph under **First Category of Cases**. Likewise, in the case of “Liaquat Ali and another v. The State” (2022 SCMR 1097), mentioned in the above-referred paragraph under **Second Category of Cases**, rule 6 of the Rules 2001 was not specifically discussed and while discussing the issue of delay of more than 72-hours in sending sample parcels to the Forensic Science Laboratory (rule 4[2] of the Rules 2001), a general observation was made that Rules 2001 are directory in nature. However, the fact remains that rule 6 of Rules 2001 was not specifically discussed in the said judgment, which rule is the moot point for decision before this larger Bench. Similarly in the remaining two judgments mentioned in the said paragraph under **Second Category of Cases**, it was not held that rule 6 of the Rules, 2001, was not mandatory and only directory in nature. However, in

the said judgments while discussing the reports of the Chemical Examiner, it was held that results and conclusions were mentioned in the said reports, which was sufficient compliance of rule 6 of the Rules, 2001. As there were conflicting judgments of this Court regarding the interpretation of the details mentioned in the reports submitted in compliance of rule 6 of the Rules, 2001 and section 36 of the Act, 1997, therefore, the main point for determination before this larger bench is that as to whether the mentioning of full protocols (i.e., details of the test[s] applied, steps taken during the said tests and the results of test[s]) in the report of the Government Analyst is mandatory or not and if the report does not disclose the full protocols then as to whether it will vitiate its evidentiary value.

In order to resolve the above controversy, sections 36 & 77, of the Act, 1997 and unamended rule 6 of the Rules, 2001 (before the amendment dated 02.06.2021), are reproduced hereunder:-

36. **Reports of Government Analysts.—** (1) The Government Analyst to whom a sample of any narcotic drugs, psychotropic substance or controlled substance has been submitted for test and analysis shall deliver to the person submitting it, a signed report in quadruplicate **in the prescribed form** and forward one copy thereof to such authority as may be prescribed.

(2)
(*Bold and underlining are supplied for emphasis*)

Section 77 of the Act, 1997, has empowered the Federal Government to make rules for carrying out the purposes of the Act, 1997. The said provision of law is reproduced hereunder:-

77. **Power to make rules.—**(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

(2)

Un-amended rule 6 of Rules, 2001 reads as under:-

6. Report of result of test or analysis.—After test or analysis the result thereof together with **full protocols of the test applied**, shall be signed in quadruplicate and supplied forthwith to the sender as specified in Form-II
(*Bold and underlining are supplied for emphasis*)

Rules, 2001, were framed in the light of powers conferred under section 77 of the Act, 1997.

5. This Court in the case reported as “The State through Regional Director ANF v. Imam Bakhsh and others” (2018 SCMR 2039), had held that mentioning of full protocols i.e., tests applied on the contraband material and results of the said tests should be mentioned in the report of Chemical Examiner. It was further observed by this Court in the above-referred judgment that tests and their protocols should be mentioned in the laboratory reports, as per international guidelines. In the light of various judgments of this Court and observations made therein, the Federal Government vide notification dated 02.06.2021, eventually introduced amendments in rule 6 of Rules, 2001 and Form-II annexed therewith, which are also reproduced hereunder for ready reference:-

Rule 6. **Report of result of test or analysis.**— (1) The Government Analyst to whom a sample of any narcotic drug, psychotropic substance or controlled substance has been submitted for test or analysis under section 36 of the Act **shall deliver a signed report in quadruplicate of the Result of the test and analysis, while observing protocols of the tests or analysis applied**, after keeping one copy in the record under sub-rule (2) of rule 5 and three copies of the report shall be supplied as early as possible to the sender of the samples for further distribution.....
(*Bold and underlining are supplied for emphasis*)

FORM-II

Lab Case # Agency Wise Case #

CERTIFICATIONS OF **TEST AND ANALYSIS**
BY FEDERAL /PROVINCIAL LABORATORY

1. Certified that... sample(s) bearing seal of..... purporting to be sample(s) of..... received by hand / by post through..... (name of depositor / courier company) on..... with memorandum No..... dated..... from..... (name of sender police station.....) has been tested and analyzed and the result of each test and analysis is stated below:-

2. **DETAILS OF THE RESULT OF TESTS AND ANALYSIS**

- a. F.I.R No..... dated
- b. Name of Accused
- c. Gross Weight of samples S-1, S-2 Net Weight of sample S-1, S-2
- d. The Condition of the seal on the packet was observed as under:-
- e. Satisfactory or Unsatisfactory.
- f. Physical Examination
.....
- g. Chemical Examination of each sample separately.
 - (i)(name of test)..... Test applied for identification Result...
 - (ii)(name of test)..... Test applied for confirmation Result..
 - (iii)(Name of any other test (if applied) for confirmation.
Result.....
- h.
- i. I have observed the required protocols of the abovementioned tests and may be prosecuted under the relevant law for intentionally making a false statement to the Court.

Even from the perusal of amended rule 6 and paragraph No.2 of Form-II, reproduced above, it is evident that the details of the results of tests and analysis are to be mentioned by the Chemical Examiner in his report. It is further provided under para (i) of Form-II that if a Government Analyst makes a false report to the Court regarding observation of protocols during the test(s) then he

may be prosecuted for giving said false statement. It also signifies the importance of observing full protocols while conducting a test under the Rules 2001.

6. Although in Explanation-II, (i to vii) of amended rule 6, it is provided that only mentioning of the names of the tests in the report, shall be deemed to be full and sufficient compliance of the Rules, 2001 in respect of the supply of “Full Protocols of the test(s) and analysis applied” but the said explanation is in-conflict with the main rule, wherein it has categorically been provided that the Government Analyst will deliver a signed report of the results of the tests and analysis while observing protocols of the test and analysis applied. It is, therefore, not understandable that if a Government Analyst has to mention in its report the results of the tests and analysis while observing the full protocols of the test and analysis applied then as to why only mentioning the names of the tests in the report shall be deemed to be full and sufficient compliance of Rules 2001.

Definition of protocols has not been given in the Act, 1997 or in the Rules, 2001. In the 10th edition of Oxford Advanced Learner’s Dictionary, the meaning of protocols has been mentioned as under:-

“a plan for performing a scientific experiment or medical treatment”

This Court in paragraph No.6, of the judgment reported as “*Khair-ul-Bashar v. The State*” (2019 SCMR 930), as well as, in the case of “*Qaiser Javed Khan v. The State through Prosecutor General Punjab, Lahore and another*” (PLD 2020 Supreme Court 57), while discussing similar propositions has explained the term “**protocol**”.

Paragraph No.6, in the judgment of **Qaiser Javed Khan**, is reproduced hereunder for ready reference:-

6. The Report of the Government Analyst in this case specifies only the tests applied and not the protocols thereof. The term "protocol" has not been defined in the Rules. Its dictionary meaning is: "A plan of scientific experiment or other procedure." It is also referred to as "the precise method for carrying out or reproducing a given experiment." These definitions are in line with the elaboration of the term "protocol" given in Imam Bakhsh wherein the Court stated the expression "protocol" to mean an explicit plan of an experiment, procedure or test. It is clarified that "protocol" is, therefore, a recognized standard method or plan for carrying out the test applied to ascertain the nature of the substance under examination. No test can take place without a protocol. The Report of the Government Analyst must show that the test applied was in accordance with a recognized standard protocol. Any test conducted without a protocol loses its reliability and evidentiary value. Therefore, to serve the purposes of the Act and the Rules, the Report of the Government Analyst must contain (i) the tests applied (ii) the protocols applied to carry out these tests (iii) the result of the test(s). This sequence, for clarity and better understanding can be envisaged as follows:

Test applied	Protocols (applied to carry out the tests)	Results of the test (s)

It was rightly observed in paragraph No.8, of the majority judgment that it is worldwide recognized that Chemical Examiner must observe full protocols while conducting tests and analysis to reach at correct conclusion. While agreeing with the said observation, I may refer here the recommendations from the Scientific Working Group for the Analysis of Seized Drugs (SWGDRUG) wherein at Part IV A, IVA.9.2, it has been recommended that Reports issued by laboratories shall clearly provide the list of analytical techniques

applied. Likewise, the International Organization for standardization ISO/IEC 17025, in its 3rd edition [ISO/IEC 17025:2017 (E)], has provided at 7.8.2.1 that each report of the Chemical Examiner should identify **the method used for the test of contraband material**. It is, therefore, clear that even according to the International Standards, the report of the Government Analyst must mention the full protocols, tests applied on the contraband material and the results thereof. Non-mentioning of the abovementioned details in the report of the Government Analyst would cause serious prejudice to the case of the State, as well as, the accused.

7. Another question which came under discussion during arguments is that as to whether rule 6 of the Rules, 2001, is mandatory or directory in nature. The word “**shall**” has been used in unamended and amended rule 6 of the Rules, 2001, regarding the mentioning of protocols in the report of Government Analyst, which makes it mandatory for the Analyst to mention the full protocols and their results in his report. I am of the view that a faulty report of an Analyst which does not contain the full details of protocols applied and their results, shall defeat the purpose of the Act of 1997. The same shall also prejudice the case of either party, therefore, the said rule is mandatory on this ground, as well. This Court in the cases mentioned in paragraph No.1, of the majority judgment under **First Category of Cases** and even in number of other judgments has rightly held that where non-compliance of a rule shall prejudice the case of either party or non-compliance of a rule shall defeat the purpose of law then the said rule should be considered as mandatory and not directory in nature.

The main object of the Control of Narcotic Substances Act is to prevent the use, sale, purchase, transportation etc of the narcotic substances but if the Chemical Examiner does not mention the full protocols in its report then the same shall create doubt in the prosecution case, which will result into acquittal of the accused on the abovementioned ground and as such the non-compliance of rule 6 of the Rules, 2001 would defeat the purpose of the main Act i.e., Act, 1997. Likewise, non-compliance of rule supra shall also prejudice the case of an accused, who might have falsely been involved in a narcotic case.

8. It was next argued during hearing of these cases that the condition of mentioning the full protocols in unamended rule 6 of the Rules, 2001, was not provided under section 36 of the Act, 1997, hence the said condition exceed the scope of the parent Act. In my humble view there is no substance in the abovementioned argument because there was no bar in the Act of 1997 on mentioning the full protocols, test(s) applied and their results in the Government Analyst report. The said condition was imposed in Rules, 2001 to advance the purposes of the parent Act, to ensure the transparency and fair play. If the abovementioned argument is presumed to be correct then it is also not provided in section 36 of the parent Act that the names of the tests applied and their results should be mentioned in the Analyst report. Hence under the above analogy an Analyst may not mention in its report even the names of tests applied and their results on the ground that no such condition is imposed in section 36 of the Act, 1997. Then on the same analogy such report cannot be declared to be of no evidentiary value because insistence to mention the above details in the report would exceed

the scope of the parent Act. It is further noteworthy that even after amendment vide notification dated 02.06.2021, it is provided in rule 6 of Rules, 2001, that a Government Analyst shall mention the results of the test and analysis while observing protocols of the test or analysis applied. I am, therefore, of the view that the condition of mentioning of full protocols and analysis of psychotropic substance in the report of Government Analyst does not exceed the parent Act rather the same advances the purposes of the Act, 1997.

9. It was also argued before the Court during the hearing of these cases that section 510 of Cr.P.C, provides a statutory safeguard for the protection of the rights and interests of the accused because if an accused deems it necessary, may move an application before the learned trial Court for examination of the Analyst in order to establish that the protocols were not observed during the test. In my humble view there is no substance in the said argument because once a report is issued by the Analyst then he will definitely try to defend the said report while making a false or true claim that the protocols were fully observed during the test. It has been noted in different cases that whenever a Government Analyst is summoned by the Court then he tries his level best to defend his report by stating that the protocols were observed and all other legal requirements were fulfilled while conducting the test of the contraband material. Furthermore, summoning of the Analyst and record in the Court and his cross-examination will result into the wastage of the precious time of the Court and the general public and it will also create extra burden on the Government Exchequer. Moreover, it is a common observation that the Government Analysts/Experts are usually not summoned by the Courts and

once they are summoned, then they vigorously defend their reports because otherwise, they may face penal consequences/ departmental proceedings for the issuance of a defective report. I am, therefore, of the view that the provisions of section 510 Cr.P.C, does not provide sufficient statutory safeguard for the protection of the rights and interests of the accused. Even otherwise section 510 Cr.P.C exempts a government Analyst from personal appearance in the Court unless he is summoned by the Court, therefore, it is better even for the Analyst to mention all the details of his test, analysis and their results in his report in order to avoid his summoning by the Court. It will also be better for safe administration of justice, transparency and fair play.

10. I am, therefore, of the view that in the judgments mentioned under **First Category of Cases** in paragraph No.1, of the majority judgment, this Court has rightly held that mentioning of full protocols in the report of Chemical Examiner was mandatory as envisaged under un-amended rule 6 of the Rules, 2001. The mentioning of said details is mandatory for safe administration of justice even under amended rule 6 of the Rules, 2001. A report that fails to give the details of full protocols of the test(s) applied, their analysis and results thereof, shall be inconclusive, unreliable, suspicious, untrustworthy and the same will not meet the evidentiary assumption attached to a Report of the Government Analyst.

11. In the light of above discussion, I answer the questions referred to above in the following terms:-

Question I. Requirement of mentioning the full protocols in unamended rule 6 is mandatory or directory?

Ans. Mentioning of full protocols in the report of Government Analyst is mandatory as envisaged under unamended rule 6 of Rules, 2001. Non-mentioning of full protocols and analysis in the report would invalidate the report of Government Analyst. Amended or unamended rule 6 of the Rules, 2001, does not exceed section 36(2) of the parent Act, 1997.

However, Explanation II (i to vii) of amended rule 6, whereby it is provided that only mentioning the names of the internationally recognized test in the report of Analyst shall be deemed to be full and sufficient compliance of the rule in respect of the supply of "Full protocols of the test(s) or the analysis applied", is in-conflict with the parent rule. The concerned forum /Govt may consider to further amend the said Explanation (Explanation II of Rule 6 of the Rules 2001) and Form-II annexed therewith, in order to bring the same in conformity with the main rule and parent law i.e., Act 1997.

Question II. What constitute sufficient compliance with the protocols requirement?

Ans. Unamended and amended rule 6 of the Rules, 2001 coupled with Form-II(2), annexed with the Rules, 2001, provides that mentioning of full protocols, names of internationally recognized tests and steps taken during the tests with analysis and results, shall be mentioned in the report of the Government Analyst and the absence of the abovementioned details in the report will not meet the requirements of protocols to be mentioned in the report.

It is clarified that this judgment has been referred only to answer the abovementioned questions. The petitions, as well as the appeals shall be fixed by the office as per roster on their own turn.

12. Before parting with this note, I appreciate the exceptional research and assistance in this case by Mr. Ghulam Muhammad Adnan, Law Clerk, his diligence, attention to detail and analytical skills are outstanding.

JUDGE

Islamabad

Approved For Reporting

Aitazaz & Ghulam Muhammad Adnan LC